

Absorbed Areas (Laws) Act, 1954

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Union of India - Act

Absorbed Areas (Laws) Act, 1954

UNION OF INDIA

India

Absorbed Areas (Laws) Act, 1954

Act 20 of 1954

Published on 30 April 1954

Commenced on 30 April 1954

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[Note: The original publication document is not available and this content could not be verified.]

Absorbed Areas (Laws) Act, 1954

(20 OF 1954)

362.

Objects and Reasons Agreements between the Governments of India and Pakistan dated 10th September, 1958, 23rd October, 1959, and 11th January, 1960, settled certain boundary disputes between the Governments of India and Pakistan relating to the borders of the State of Assam, Punjab and West Bengal and the Union Territory of Tripura.

Accordingly to these agreements, certain territories are to be transferred to Pakistan after demarcation. In the light of the Advisory Opinion of the Supreme Court in Special Reference No. 1 of 1959, it is proposed to amend the First Schedule to the Constitution under a law relatable to Article 368 thereof to give effect to the transfer of these territories.

[30th April, 1954]

An Act to extend certain laws to the areas which, prior to the commencement of the Constitution, were administered as

excluded or partially excluded areas and which, on such commencement, were absorbed in certain States.

BE it enacted by Parliament as follows:-

1.

Short title.-

This Act may be called the Absorbed Areas (Laws) Act, 1954.

2.

Definitions.-

In this Act, unless the context otherwise requires,-

(a)

"absorbing State" in relation to an absorbed area means a State specified in the heading of the Schedule in which that absorbed area is specified;

(b)

"absorbed area" means an area specified in column 2 of the Schedule.

3.

Extension of Laws.-

The Acts specified in column 1 of each of the Schedules and all rules, notifications, orders, schemes, forms and byelaw made thereunder, as in force in the absorbing State specified in the heading of that Schedule, are hereby extended to, and shall be in force in the absorbed areas specified in column 2 of that Schedule.

THE SCHEDULES

(See sections 2 and 3)

I

BIHAR

Name of the Act

The absorbed areas

(1)

(2)

The Requisitioned Land (Apportionment of Compensation) Act, 1949 (51 of 1949).

1. Hazaribagh and Manbhum Districts.

2. Sadar Sub-Division of the Palamau District.

3. Dhalbhum Sub-Division of the Singhbhum District.

4. Godda and Deoghar Sub-Divisions of the Santal Parganas District.

II

BOMBAY

Name of the Act

The absorbed areas

(1)

(2)

1. The Indian Extradition Act, 1903 (XV of 1903).

1. Shahda, Nandurbar and Taloda Taluka of the West Khandesh District.

2. The Whipping Act, 1909 (IV of 1909).

2. The Dohad Taluka and the Jhalod Mahal of the Panch Mahal District.

3. The Police (Incitement to Disaffection) Act, 1922 (XXII of 1922).

4. The Cotton Transport Act, 1923 (III of 1923).

5. The Port Haj Committees Act, 1932 (XX of 1932).

6. The Seaward Artillery Practice Act,
1949 (VIII of 1949).

III

ORISSA

Name of the Act

The absorbed area

1

- 2
1. The Metal Tokens Act, 1889 (1 of 1889)
Angul.
 2. The white Phosphorus Matches Prohibition Act, 1913 (V of 1913).
 3. The Indian Emigration Act, 1922 (VII of 1922).
 4. [The Coal Grading Board Act, 1925 (XXXI of 1925).]
[Repealed by Act 17 of 1959 (w.e.f. 14-8-1959)]
 5. The Coal mines Provident Fund and Bonus Schemes Act, 1948 (XLVI of 1948).

IV

UTTAR PRADESH

Name of the Act

The absorbed area

1

2

1. The Indian Power Alcohol Act, 1948 (22 of 1948)
Jaunsar Bawar Parganas in the Dehra Dun District and the areas of South of Kaimpur range in the Miezapur District.

2. The Employees'

State Insurance Act, 1948 (

34 of 1948

).

V

WEST BENGAL

Name of the Act

The absorbed area

1

2

1. The Requisitioned Land (Apportionment of Compensation) Act, 1949 (51 of 1949).
Darjeeling District.

2. The West Bengal Raw Jute Futures Act,
1948 (West Bengal Act No. 25 of 1948).

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